

Privacy Policy

INTRODUCTION

Nirvana Asia Ltd and its related companies and subsidiaries ("Nirvana Group") are committed to protecting and respecting the privacy of individuals with regard to Personal Data (as defined herein below) to ensure compliance with the legal and regulatory requirements in accordance with the relevant data privacy laws ("Privacy Laws").

When using our services or logging in or browsing or accessing our website ("Website") and/or during the course of your transaction and dealings with Nirvana Group, you may be requested to furnish from time to time to Nirvana Group, directly or through online forms and/or other electronic methods, your Personal Data.

C. The following Personal Data Protection Notice is formulated to keep you informed about how we collect, store, use, disclose and/or process the Personal Data we collect and receive during the course of providing the services or access to the Website to you.

D. BY LOGGING IN OR USING OR BROWSING THIS WEBSITE, YOU ACKNOWLEDGE THAT YOU HAVE BEEN NOTIFIED OF AND UNDERSTOOD THE TERMS OF THIS PRIVACY POLICY AND THAT YOU HAVE AGREED AND CONSENTED TO THE COLLECTION, USE, DISCLOSURE AND/OR PROCESSING OF YOUR PERSONAL DATA AS DESCRIBED UNDER OUR PERSONAL DATA PROTECTION NOTICE. IF YOU DO NOT AGREE WITH THESE TERMS, YOU MAY CHOOSE NOT TO USE THIS WEBSITE, AND PLEASE DO NOT PROVIDE ANY PERSONAL DATA THROUGH THIS WEBSITE.

E. We may update this Privacy Policy from time to time. Any changes we make to this Privacy Policy in the future will be posted on this page and whereupon your continued access to this Website including using any services offered by this Website, shall constitute your acknowledgment and acceptance of the changes we make to this Privacy Policy.

F. Please note that this Privacy Policy complements, and does not limit or replace, the purposes for which you provide Nirvana Group with your Personal Data which may be expressly stated in any form for submission of Personal Data to Nirvana Group.

PERSONAL DATA PROTECTION NOTICE

1. Description On Personal Data

Such personal identifying information may be subject to applicable data protection, privacy and other similar laws and may include information concerning name, identity card number, passport number, billing and correspondence address, gender, date of birth and age, marital status, contact information, email address, race, nationality, religious and credit card or bank account information and/or other information relevant to the purposes listed in Item 3 below ("Personal Data").

Personal Data supplied by you to Nirvana Group must be accurate, complete and not misleading. If you know that your personal data held by Nirvana Group is inaccurate, incomplete, misleading or not up-to-date, you may make a data correction request in writing to Nirvana Group at the contact details set out in Item 7 below.

2. Consequences on Non Compliance

The failure to supply such Personal Data will:

- a. Result in us being unable to provide you with the notices, services, products and/or the information as requested;
- b. Affect the ability of the parties to enter into the necessary sale transaction, agreement or dealing in relation to the products and services;
- c. Result in us being unable to process your application or registration for any of the necessary services, products, programs and/or activities.

3. Purposes

Personal Data duly collected are for the following purposes:

- a. To process your application or registration under any program and/or activities organized or conducted by Nirvana Group or in connection with any of our products and/or services;
- b. The delivery of notices (including notices through social medias), letters and other advertising and/or marketing materials in connection with our products and services whether present or future, updates and promotions and/or information related to other third parties which Nirvana Group thinks you may be interested, to you;

- c. Sale of the products and/or services offered by Nirvana Group, to you which shall include all matters relevant for the completion of the sale and purchase transactions, delivery of the requested products and services and other post sale services;
- d. Entering into any transactions, agreements or instruments in the ordinary course of business of Nirvana Group and for discharging Nirvana Group's contractual obligations in the ordinary course of business;
- e. Conducting marketing and client profiling activities in connection with our services and related new products;
- f. Our internal record keeping;
- g. For debt collection purposes;
- h. To respond to your enquiries or complaints including processing instructions and generating confirmation, advice and statements;
- i. To match data held by us relating to you from time to time;
- j. To investigate complaints and suspicious transactions;
- k. With your consent, for cross selling purposes for new products and funeral services packages launched by us;
- l. Discharging Nirvana Group's duties and obligations under the appropriate law, regulation, direction and guideline applicable to Nirvana Group;
- m. In anticipation of, and in the course of an actual or potential sale, reorganization,

consolidation, merger, or amalgamation of all or part of Nirvana Group's business or operations; and/or

n. For all other purposes incidental or associated with the above.

If you have provided Personal Data of individuals other than yourself to Nirvana Group, you also confirm that you have sought the requisite consent from these individuals to the collection, use and disclosure of their Personal Data. In particular, you confirm that you have informed these individuals of the purposes for collection, use and disclosure of their personal data as set out above.

4. Information Disclosure

Personal Data provided to us will generally be kept confidential but you hereby consent and authorize us to provide or disclose your Personal Data to the following categories of parties:-

a. Any person to whom we are compelled or required to do so under law or in response to a competent or government agency;

b. Any related companies and subsidiaries within Nirvana Group including those to be established in the future;

c. Our authorized agents who provide related services or sell our products and services on our behalf;

d. Government agencies, statutory authorities and industry regulators;

- e. Our auditors, consultants, accountant, lawyers or other financial or professional advisers, including any relevant financial institutions;
- f. Our designated contractors, sub-contractors, network operators or any third party service or products providers/ suppliers or management companies as may be necessary or appropriate;
- g. Nirvana Group's business partners and affiliates;
- h. Any other persons under a duty of confidentiality to Nirvana Group; and/or
- i. Any other entities that Nirvana Group may think fit and necessary to the purposes listed in Item 3 above

5. Security

We shall process and store your Personal Data in a secure manner by adopting the appropriate measures and practical procedures so that any unauthorized or unlawful processing of your Personal Data which may give rise to accidental loss or destruction of/or damage to your Personal Data will be prevented at all times.

Any Personal Data supplied by you will be retained by Nirvana Group as long as necessary for the fulfilment of any of the purposes stated in Item 3 above or otherwise permitted by any applicable law that may from time to time be in force.

If any Personal Data is no longer required for the purpose for which it was processed, Nirvana Group shall take all reasonable steps to ensure that it is destroyed or permanently de-identified.

6. Transferring & Sharing Of Personal Data

Whenever we deem necessary or appropriate, we may transfer or share your Personal Data to another member of Nirvana Group or authorized agents which operate in a number of countries. This may entail a transfer of your Personal Data from your home country to other jurisdiction(s) where the level of personal information protection may be different. We will take reasonable steps to protect the Personal Data we hold from misuse and loss and from unauthorized access, modification or disclosure in accordance with the applicable Privacy Laws that may from time to time be in force.

7. Access and Correction

You have the right to request access to and correction of information held by us at a fee. In this respect, you may:

- a. Check whether we hold or use your Personal Data and request access to such data;
- b. Request that we correct any of your Personal Data that is inaccurate, incomplete or out-of-date;
- c. Request that your Personal Data is retained by us only as long as necessary for the fulfillment of the purposes for which it was collected:
- d. Request that we specify or explain our policies and procedures in relation to Personal Data handled by us;
- e. Communicate to us your objection to the use of your Personal Data for marketing purposes whereupon we will not use your Personal Data for these purposes; and
- f. Withdraw, in full or in part, your consent given previously, subject to any applicable legal restrictions, contractual conditions and a reasonable time frame.

If you wish to make any inquiries, correction, complaints or access to your Personal Data, please contact us by written application at:

Company : Nirvana Asia Ltd

Department : Customer Service Department

Email Address : johor@nvasia.com.my

8. Languages

This Personal Data Protection Notice is issued in English and Bahasa Malaysia versions. In the event of any conflicts in the interpretation of the notice hereof or any inconsistencies between the two versions, the English version shall prevail over